

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JULIAN CEPEDA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
RAMOS, SHIELD NO. 17933, SERGEANT BRENDAN
MCLAUGHLIN, SHIELD NO. 5001, and POLICE
OFFICER BRANDON RUSHIE, SHIELD NO. 24857

Defendants.
-----X

Index No.:

SUMMONS

Plaintiff designates
Bronx County
as the place of trial.

Basis of Venue:
Location of Occurrence.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 11, 2024

**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff
380 Lexington Avenue – 29th Floor
New York, New York 10168
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

POLICE OFFICER DANIEL RAMOS
SHIELD NO. 17933
43rd Precinct
900 Fteley Avenue
Bronx, NY 10473

SERGEANT BRENDAN MCLAUGHLIN
SHIELD NO. 5001
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

POLICE OFFICER BRANDON RUSHIE
SHIELD NO. 24857
43rd Precinct
900 Fteley Avenue
Bronx, NY 10473

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Plaintiff, JULIAN CEPEDA, by his attorneys FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C. as for his Verified Complaint, alleges the following, upon information
and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK was
and still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all police officers thereof.

3. At all times hereinafter mentioned, on October 14, 2022, Defendants POLICE
OFFICER DANIEL RAMOS (“RAMOS”), SERGEANT BRENDAN MCLAUGHLIN
(“MCLAUGHLIN”), and POLICE OFFICER BRANDON RUSHIE (“RUSHIE”) were employed
by Defendant THE CITY OF NEW YORK, as police officers.

4. At all times hereinafter mentioned, Defendants RAMOS, MCLAUGHLIN and RUSHIE, were acting within the scope of their employment as police officers with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force, and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

7. At all times hereinafter mentioned Defendant THE CITY OF NEW YORK employed Defendants RAMOS, MCLAUGHLIN and RUSHIE.

8. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the New York City Police Department.

9. The plaintiff, JULIAN CEPEDA (“CEPEDA”) was, on October 14, 2022, and at all relevant times, a resident of the County of Bronx, State of New York, residing at 1041 Findlay Avenue, Bronx, NY 10456.

CONDITIONS PRECEDENT

10. On or about August 3, 2023, Plaintiff CEPEDA duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

11. On August 30, 2023, Plaintiff CEPEDA filed an Order to Show Cause seeking leave to file and serve a late Notice of Claim.

12. On October 4, 2023, this Court granted Plaintiff's Order to Show Cause seeking leave to file and serve a late Notice of Claim and deemed it timely *nunc pro tunc*.

13. On October 26, 2023, Plaintiff CEPEDA complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-h of the General Municipal Law.

JURISDICTION AND VENUE

14. The Plaintiff brings this action in the Supreme Court, State of New York, County of Bronx, because the Plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

15. The Plaintiff properly designates Bronx County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

16. On or about October 14, 2022, at the rear of 2245 Randall Avenue, Bronx, NY at approximately 9:14 P.M., the Plaintiff was a lawful passenger in a motor vehicle.

17. At that date, time and location, the vehicle in which Plaintiff was a lawful passenger was illegally and unconstitutionally stopped by Defendants RAMOS, MCLAUGHLIN, and RUSHIE while Plaintiff was a passenger in the vehicle. Said police officers engaged in a pattern and practice of illegal stops that has been sanctioned, approved and directed by Defendant THE CITY OF NEW YORK.

18. Plaintiff was then illegally questioned, searched and arrested by Defendants RAMOS, MCLAUGHLIN, and RUSHIE in violation of Plaintiff's rights secured under the Constitution of the United States of America.

19. On October 14, 2022, at approximately 9:14 P.M., Plaintiff was charged by Defendants RAMOS, MCLAUGHLIN, and RUSHIE with criminal possession of a weapon. Defendants RAMOS, MCLAUGHLIN, and RUSHIE falsely and maliciously alleged that they observed Plaintiff in possession of a loaded firearm.

20. After the false arrest and false imprisonment, Defendants RAMOS, MCLAUGHLIN, and RUSHIE continued the malicious prosecution with actual malice. Knowing their statements and accusatory instruments were false, Defendants RAMOS, MCLAUGHLIN, and RUSHIE continued with the prosecution of Plaintiff CEPEDA.

21. All charges were dismissed against Plaintiff CEPEDA on April 20, 2023.

22. At the above specified time and place, without justification or provocation and without a warrant, the Defendants, THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, assaulted, accosted, battered, arrested, confined, unduly restrained, falsely arrested, falsely imprisoned and wrongfully prosecuted Plaintiff CEPEDA.

23. Members of the Bronx County District Attorney's office as well as Defendants RAMOS, MCLAUGHLIN and RUSHIE maliciously prosecuted the Plaintiff, CEPEDA.

24. Plaintiff CEPEDA was brought to the 43rd Precinct for approximately one day, then transferred to Central Booking where he was held for approximately two days. After Plaintiff CEPEDA was arraigned on October 16, 2022, he was transferred to Rikers Island for approximately one week.

AS AND FOR A FIRST CAUSE OF ACTION

25. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “24,” inclusive, as though each were set forth at length herein.

26. On October 14, 2022, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered Plaintiff, CEPEDA, without any right or grounds thereof.

27. Defendants RAMOS, MCLAUGHLIN and RUSHIE, injured and maimed the Plaintiff CEPEDA such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

28. Plaintiff was detained, arrested, imprisoned, assaulted and battered by the Defendants, their agents, servants and/or employees without probable cause and/or justification.

29. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of Plaintiff, CEPEDA.

30. Defendants, their agents, servants and/or employees, intended to confine the Plaintiff, CEPEDA, in that Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not privileged.

31. At the time of his unlawful arrest, detention and imprisonment, Plaintiff, CEPEDA, had not committed or attempted to commit any illegal act or crime.

32. At the time of the unlawful arrest of Plaintiff CEPEDA, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest and detention were false and without probable cause.

33. Said false arrest and false imprisonment caused Plaintiff, CEPEDA, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

34. Defendants placed Plaintiff, CEPEDA, under arrest, and falsely charged him with criminal possession of a weapon. Defendants RAMOS, MCLAUGHLIN and RUSHIE further acted maliciously by submitting false testimony against the Plaintiff at the time of arrest and criminal prosecution.

35. Plaintiff CEPEDA, was in police custody, was unlawfully detained and was falsely imprisoned. The unlawful search and seizure were without due process of law and were done to deprive Plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

36. It is alleged that Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, created false evidence and testimony, and therefore maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated plaintiff, CEPEDA, in violation of his constitutional rights.

37. Plaintiff, CEPEDA, was released from custody on or about October 23, 2022.

38. As a direct result of the above Defendants' actions, Plaintiff, CEPEDA, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

39. Plaintiff, CEPEDA, suffered – and continues to suffer – greatly and was and is physically and emotionally traumatized by this excessive detention and imprisonment.

40. The false criminal arrest and wrongful imprisonment of Plaintiff, CEPEDA, because of Defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

41. As a direct and proximate result of Defendants' actions, Plaintiff, CEPEDA, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

42. As a result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants, THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

43. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "42," inclusive, as though each were set forth fully at length herein.

44. October 14, 2022, at the rear of 2245 Randall Avenue, Bronx, NY at approximately 9:14 P.M., while Plaintiff CEPEDA was a lawful passenger in a motor vehicle, he was assaulted and battered by Defendants RAMOS, MCLAUGHLIN and RUSHIE, who are employed by Defendant THE CITY OF NEW YORK.

45. As a result of the above mentioned unprovoked assault and battery, Plaintiff, CEPEDA, was injured, intentionally and externally, became sick, sore, lame, and disabled, and upon information and belief, will continue to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to be cured of said injuries.

46. As a result of the foregoing, Plaintiff, CEPEDA, demands judgement against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

47. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "46," inclusive, as though each were set forth fully at length herein.

48. The actions of Defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, malicious prosecution, wrongful imprisonment, and assault and battery, all in violation of the civil rights of Plaintiff, CEPEDA.

49. Defendants deprived Plaintiff, CEPEDA, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

50. Defendants violated the civil and constitutional rights of Plaintiff, CEPEDA, a person within the meaning of 42 U.S.C. §1983, as set forth in the United States Constitution, by their institutionalized procedure and act, and deprived Plaintiff CEPEDA of the rights secured by 42 U.S.C. §1983 and the Constitution of the State of New York.

51. Defendants' actions were undertaken under color of law and would not have existed but for said Defendants using their official power.

52. Plaintiff CEPEDA was stopped and frisked and arrested absent reasonable suspicion. The actions of said Defendants were pursuant to an illegal and improper stop and frisk program that was created by Defendants. Such custom, policy and program has created a class of citizens, including Plaintiff CEPEDA, who have been illegally stopped and seized, searched and questioned based upon their race to meet arrest quotas.

53. Said policy and procedure, custom and practice of having arrest quotas and/or productivity goals which results in false arrests and malicious prosecution of innocent citizens was discussed by Justice Shira A. Scheindlin in David Floyd, et. al. v. City of New York, et. al., 08 CIV 1034 (SDNY). In that decision, she found by a preponderance of the evidence that the NYPD had an enormous Stop and Frisk program, that it was organized and hierarchical, that it was a result of institutional decisions and directives, that it had been designed and revised at the highest levels by Defendants.

54. Further, in the Floyd case, NYPD Officer Adhil Polanco testified that NYPD routinely arrest primarily minority populations without legal reason to do so, and are required or expected to do so, to satisfy arrest quotas.

55. The NYC Department of Investigation Office of the Inspector General for the NYPD issued a report that determined that the NYPD routinely fails to discipline officers who have engaged in misconduct, fails to adequately track instances of abuse of power, fails to properly train officers and that the practice continued unabated.

56. The supervisors and policy making officers of Defendant THE CITY OF NEW YORK and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

57. Defendant THE CITY OF NEW YORK, and its Police Department, have sanctioned the above-described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of Plaintiff, CEPEDA, and others similarly situated.

58. As a result of the foregoing, Plaintiff, CEPEDA, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

59. As a result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

60. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “59,” inclusive, as though each were set forth fully at length herein.

61. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including Defendants RAMOS, MCLAUGHLIN and RUSHIE, with knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and therefore, were unfit to be police officers.

62. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including Defendants RAMOS, MCLAUGHLIN and RUSHIE, with knowledge that said police officers lacked the department to be employed by the aforementioned defendant, and were, therefore, unfit to be a police officer.

63. Defendant THE CITY OF NEW YORK hired and retained in its employ police officers, including Defendants RAMOS, MCLAUGHLIN and RUSHIE, with knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

64. As a result of the foregoing, Plaintiff, CEPEDA, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

65. As a result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

66. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “65,” inclusive, as though each were set forth at length herein.

67. On or about October 14, 2022, Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, through their agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff, CEPEDA, by filing an accusatory instrument, without probable cause and in bad faith.

68. More specifically, Defendants RAMOS, MCLAUGHLIN and RUSHIE were the only eyewitnesses to the alleged criminal conduct. Defendants RAMOS, MCLAUGHLIN and RUSHIE, with actual malice, made statements regarding the actions of Plaintiff CEPEDA that he knew were false. Even more specifically, that they observed Plaintiff in possession of a handgun, despite knowing that was false.

69. Defendants RAMOS, MCLAUGHLIN and RUSHIE continued to present false statements and continued the malicious prosecution of Plaintiff. This continued presentation of false statements and testimony, as the sole eyewitnesses, knowing that they were false, constituted malicious prosecution.

70. Further the NYPD, CITY of NEW YORK and the Bronx County District Attorney's Office continued to prosecute and rely on the false statements of Defendants RAMOS, MCLAUGHLIN and RUSHIE, despite knowing that they were the sole eyewitnesses.

71. Plaintiff had not committed the illegal acts of which Defendants RAMOS, MCLAUGHLIN and RUSHIE falsely accused him.

72. Plaintiff had not given Defendants, their agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

73. Defendants knew or should have known through the exercise of reasonable care and proper police procedure, that said investigation was false, flawed and incomplete.

74. As a result of the foregoing malicious prosecution, Plaintiff, CEPEDA, suffered and continues to suffer, substantial and permanent damages.

75. Said malicious prosecution caused Plaintiff, CEPEDA, to sustain severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

76. As a result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

77. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “76,” inclusive, as though each were set forth fully at length herein.

78. Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

79. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of Plaintiff, CEPEDA; the assault and battery committed by Defendants against Plaintiff, CEPEDA; the violation of Plaintiff’s civil and constitutional rights; the malicious prosecution of Plaintiff, CEPEDA; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the Defendants, their agents, servants and/or employees, without any negligence on the part of the Plaintiff, CEPEDA.

80. As result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

81. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “80,” inclusive, as though each were set forth fully at length herein.

82. Defendants’ conduct towards Plaintiff was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

83. Defendants acted with the desire to cause Plaintiff, CEPEDA, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

84. Defendants acted with utter and reckless disregard of the consequences of their actions.

85. As a result of the foregoing, Plaintiff, CEPEDA, has sustained severe and debilitating physical, emotional, and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

86. As a result of the foregoing, Plaintiff, CEPEDA, demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AND EIGHTH CAUSE OF ACTION

87. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “86,” inclusive, as though each were set forth fully herein.

88. Upon information and belief, Defendant THE CITY OF NEW YORK, through Defendants RAMOS, MCLAUGHLIN and RUSHIE, by their conduct and under color of state law, had opportunities to intercede on behalf of Plaintiff, CEPEDA, to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

89. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

90. As a result of the foregoing, Plaintiff, CEPEDA, demands judgement against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

91. That by reason of the foregoing, Plaintiff, CEPEDA, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, Plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment, and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

92. Plaintiff, CEPEDA, suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, was falsely imprisoned, loss of reputation in the community, loss of self-esteem, fear and anxiety as a result of this incident.

93. Plaintiff was deprived of his freedom.

94. As a result of the aforementioned, Defendants violated the rights of Plaintiff, CEPEDA, secured to him under the 8th Amendment and 14th Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

95. Plaintiff, CEPEDA, was caused to be injured, and to undergo pain and suffering due to the aforementioned willful, wanton and deliberate indifference on the part of Defendants.

96. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

97. As a result of the aforesaid, Plaintiff, CEPEDA, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, JULIAN CEPEDA, respectfully demands judgment against Defendants THE CITY OF NEW YORK, RAMOS, MCLAUGHLIN and RUSHIE, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
January 11, 2024

Yours, etc.,



Nicolas Bagley, Esq.
**FRIEDMAN, LEVY, GOLDFARB,
GREEN & BAGLEY, P.C.**

Attorneys for Plaintiff

JULIAN CEPEDA
380 Lexington Avenue – 29th Floor
New York, NY 10168
(212) 307-5800

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB, GREEN & BAGLEY, P.C., attorneys of record for plaintiff. I have read the annexed

SUMMONS & VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff is presently outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
January 11, 2024

By:



NICOLAS BAGLEY